

Commissioners of Woods and Forests.¹ The operation of the common law is, of course, no longer excluded from their confines, the old antithesis between forest law and the law of England being a thing of the past.²

CHAPTER FORTY-FIVE.

Nos non faciemus justiciarios, constabularios, vicecomites vel ballivos, nisi de talibus qui sciant legem regni et eam bene velint observare.

We will appoint as justices, constables, sheriffs, or bailiffs only such as know the law of the realm and mean to observe it well.

The object of this plainly worded clause was to prevent the appointment of unsuitable men to responsible posts under the Crown. The list of officers is a comprehensive one—justices, sheriffs, constables and bailiffs—embracing all royal ministers and agents, both of the central and of the local government, from the chief justiciar down to the humblest serjeant.³ This clause was directed in particular against John's foreign favourites such as the Poitevin Bishop of Winchester, Peter des Roches, who had wielded the authority of chief justiciar in 1214 when the King was abroad,⁴ or such as Engelard de Cigogné, stigmatized by name in a later part of Magna Carta.⁵ Such men had no interests at stake in England, and little love for its customs and free traditions. In future John must choose a different type of servants, avoiding all such unscrupulous men, whether Englishmen or foreigners, as were ready to break the law in their master's interests or their own. But what class were to fill their places?

Bishop Stubbs credits the framers of the Charter

¹ In virtue of a series of Acts of which 14-15 Victoria c. 42 is the latest.

² See Stephen, *Commentaries*, II. 465-6.

³ Constable and bailiff are discussed *supra*, c. 24, and shown to include forest magistrates, *supra*, c. 44.

⁴ See *supra*, p. 30, and cf. Blackstone, *Great Charter*, viii.

⁵ See c. 50.